

26STCV03348 26STCV03348

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Case Number: 26STCV03348 Hearing Date: September 24, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

24, 2026

CASE NAME: Jose

Antonio Figueroa Sancez v. Volt Management Corporation, et al.

CASE NO.: 26STCV03348

MOTION

FOR LEAVE TO AMEND COMPLAINT;

MOTION

TO COMPEL ARBITRATION

MOVING PARTY:

Motion for Leave to Amend Complaint: Plaintiff Jose Antonio

Figueroa Sanchez

Motion to Compel Arbitration: Defendants Volt Management

Corporation and Volt Information Sciences, Inc.; Defendants National Football

League, NFL Enterprises LLC, and Denies Gungormezzer

RESPONDING PARTY(S):

Motion for Leave to Amend Complaint: Defendants Volt Management Corporation and Volt Information Sciences, Inc.; Defendants National Football League, NFL Enterprises LLC, and Denies Gungormezger

Motion to Compel Arbitration: Plaintiff Jose Antonio Figueroa Sanchez

REQUESTED RELIEF:

1. An order granting leave to file a second amended complaint;
2. An order compelling Plaintiff's claims to arbitration and issuing a stay pending arbitration.

TENTATIVE RULING:

1. Motion for leave to file a second amended complaint is GRANTED;
2. Plaintiff shall file the proposed second amended complaint attached with their motion within 7 days of this ruling;
3. The court CONTINUES the hearing on Defendants' motion to compel arbitration to December 7, 2026 at 9:00 a.m. with the following briefing schedule: Defendants' amended briefings shall be filed on or before November 10, 2026. Plaintiff's amended opposition shall be filed on or before November 20, 2026. Defendants' amended reply shall be filed on or before November 30, 2026.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On February 2, 2026, Plaintiff Jose Antonio Figueroa Sancez (Plaintiff) filed a complaint against Defendants Volt Management Corporation, National Football League, National Football League Network, and Denise Gungormezger with causes of action for: (1) discrimination in violation of FEHA;

(2) hostile work environment harassment in violation of FEHA; (3) retaliation in violation of FEHA; (4) failure to prevent discrimination, harassment, or retaliation in violation of FEHA; (5) breach of express oral contract not to terminate employment without good cause; (6) breach of implied-in-fact contract not to terminate employment without good cause; (7) negligent hiring, supervision, and retention; (8) wrongful termination of employment in violation of public policy; (9) whistleblower retaliation; and (10) intentional infliction of emotional distress.

Plaintiff alleges that he was subjected to discrimination and harassment based on his sexual orientation and race, including pay disparities, reduced work schedules, and derogatory comments in the workplace after he reported discriminatory conduct. He further alleges that the defendants ignored multiple complaints he made to supervisors, HR personnel, and external agencies, and failed to investigate or address the discriminatory and retaliatory behavior. Ultimately, Plaintiff claims he was wrongfully terminated after engaging in protected activity, including reporting discrimination and retaliation.

On March 6, 2026, Plaintiff filed a fictitious name amendment changed National Football League Network to NFL Enterprises LLC.

On April 6, 2026, Defendant Volt Management Corporation filed an answer.

On April 23, 2026, Defendants National Football League, NFL Enterprises LLC, and Denise Gungormezzer filed an answer.

On June 2, 2026, Plaintiff filed a motion for leave to file a first amended complaint (FAC) which the court GRANTED.

On June 17, 2026, Plaintiff filed the operative FAC. The FAC is against Defendants Volt Management Corp. dba Volt Workforce Solutions, Volt Information Sciences, Inc., National Football League, NFL Enterprises LLC, and Denise Gungormezzer for the same causes of action.

On August 17, 2026, Plaintiff filed the instant motion for leave to file a second amended complaint. On September 11, 2026, Volt filed an opposition. On September 15, 2026, Plaintiff filed a reply.

On August 17, 2026, Defendants Volt Information Sciences, Inc. and Volt Management Corporation (collectively Volt) filed the instant motion to compel arbitration. On September 10, 2026, Plaintiff filed an opposition. On September 17, 2026, Volt filed a reply.

LEGAL STANDARD:

Leave
to Amend

Code Civ. Proc. § 187 provides:

When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.

Code Civ. Proc. § 473(a)(1) provides:¿¿

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer.¿ The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.¿¿

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“This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.”¿ (Kittredge Sports Co. v. Superior Court¿(1989) 213 Cal.App.3d 1045, 1047.)¿ Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are

premature. The court, however, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See *California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390).)

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Under California Rules of Court Rule (CRC), rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

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Under CRC, rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

Compel
Arbitration

A written provision in any contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract shall be valid, irrevocable, and

enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract. (9 U.S.C. § 2.) The Federal Arbitration Act (FAA) requires courts to direct parties to proceed to arbitration on issues covered by an arbitration agreement upon a finding that the making of the arbitration agreement is not in issue. (9 U.S.C. § 4; *Chiron Corp. v. Ortho Diagnostic Sys.* (9th Cir. 2000) 207 F.3d 1126, 1130.) “The court’s role under the [FAA] is

therefore limited to determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue.” (Chiron Corp., supra, 207

F.3d at p. 1130.) The FAA reflects “both a ‘liberal federal policy favoring arbitration,’ [citation], and the ‘fundamental principle that arbitration is a matter of contract,’ [citation].” (AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.)

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“ “The party seeking to compel arbitration bears the burden of proving the existence of an arbitration agreement, while the party opposing the petition bears the burden of establishing a defense to the agreement’s enforcement.” (Beco v. Fast Auto Loans (2022) 86 Cal.App.5th 292, 302.) The burden of production as to this finding shifts in a three-step process. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate, which can be met by attaching a copy of the arbitration agreement purporting to bear the opponent’s signature. (Ibid.) If the moving party meets this burden, the opposing party bears, in the second step, the burden of producing evidence to challenge its authenticity. (Ibid.) If the opposing party produces evidence sufficient to meet this burden, the final step requires the moving party to establish, with admissible evidence, a valid arbitration agreement between the parties. (Ibid.)

ANALYSIS:

Amend Complaint

Plaintiff contends leave to amend is warranted because it narrows the claims, is timely made, and will not prejudice Defendants.

Defendants argue Plaintiff did not adequately explain why his “systematic review and reconciliation” of his own records resulted in discovery of new rather than already known facts. They also argue that this motion is a clear attempt to avoid complying with his obligation to arbitrate this dispute.

Plaintiff replies that he made the requisite showing and the amendment is proper since it incorporates a Court of Appeals decision published in July 2026.

Here, leave to amend is warranted. First, Plaintiff included a copy of the proposed second amended complaint and stated the changes thereby satisfying CRC, rule 3.1324(a). Second, Plaintiff satisfied the requirements of CRC, rule 3.1324(b) via his declaration. The procedural requirements for this motion are therefore met. Finally, there is little prejudice to Defendants because the court can continue the hearing on the motion to compel arbitration with limited briefing to address new issues based on the amended complaint. (See Opp. 12:3-12.)

Accordingly, the court GRANTS Plaintiff's motion for leave to amend the complaint.

Compel Arbitration

The court CONTINUES the hearing on Defendants' motion to compel arbitration to December 7, 2026 at 9:00 a.m.

Defendants' amended briefings shall be filed on or before November 10, 2026. Plaintiff's amended opposition shall be filed on or before November 20, 2026. Defendants' amended reply shall be filed on or before November 30, 2026.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for leave to file a second amended complaint is GRANTED;

2. Plaintiff

shall file the proposed second amended complaint attached with their motion within 7 days of this ruling;

3. The

court CONTINUES the hearing on Defendants' motion to compel arbitration to

December 7, 2026 at 9:00 a.m. with the following briefing schedule: Defendants' amended briefings shall be filed on or before November 10, 2026. Plaintiff's amended opposition shall be filed on or before November 20, 2026. Defendants' amended reply shall be filed on or before November 30, 2026.

Defendant Volt to give notice.

IT IS SO ORDERED.

Dated: September 24, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court